

PORTFOLIO RECOVERY ASSOCIATES V. SNOW

23CF14053

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a limited jurisdiction collections case. Before the Court is an unopposed motion by plaintiff under California Code of Civil Procedure §438 for entry of judgment on the pleadings for the amount set forth in the complaint plus costs in favor of plaintiff.

“The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (*Southern California Edison Co. v. City of Victorville* (2013) 217 Cal.App.4th 218, 227; *Department of Fair Employment & Housing v. M&N Financing Corp.* (2021) 69 Cal. App. 5th 434.)

In reviewing defendant's answer, he first admits that all statements of the complaint are true, but then affirmatively alleges that he has “no knowledge of the allegations being brough [SIC] up by the plaintiff. Therefore defendant denies ANY and ALL allegations in this case.” (Answer 3.b and 4.) This inconsistency was addressed in the discovery process. The defendant was served Requests for Admissions, which were previously deemed admitted (Order filed September 13, 2023) that establishes all elements of Account Stated and Open Book Account alleged in Complaint.

Based on the foregoing, the motion is GRANTED and the plaintiff is awarded the account stated and/or open book account sum of \$4,850.53, and costs in the amount of \$369.50, for a **total Judgment of \$5,220.03**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a Judgment in conformity with this Ruling.

CONNOLLY v De La CRUZ

23CV46549

DEFENDANT'S MOTION FOR ORDERS RE EASEMENT

Appearances required.